

Website Privacy Policy

Our Website: www.horakinc.co.za

Last updated: 9 March 2023

1. INTRODUCTION

- 1.1. The right to privacy is an integral human right recognised and protected in the South African Constitution and in the Protection of Personal Information Act 4 of 2013 ("POPI Act").
- 1.2. A person's right to privacy entails having control over his or her personal information, being able to conduct his or her affairs relatively free from unwanted intrusions. Given the importance of privacy, the Company is committed to effectively managing personal information in accordance with the POPI Act's provisions.
- 1.3. This policy seeks to explain the Company's privacy practices and the choices you have about the way your personal information will be dealt with.
- 1.4. Through the provision of quality services, the Company is necessarily involved in the collection, use and disclosure of certain aspects of the personal information of clients, employees, and other stakeholders.
- 1.5. We respect the privacy of all personal data and private information collected, processed, and stored. As such, we undertake to handle all personal information received and processed with due care and provide the necessary security to safeguard all information held by us.

2. DATA SUBJECTS RIGHTS AND OUR PRACTISES IN RELATION THERETO

2.1. The Right to be Informed

- 2.1.1. The data subject has the right to be notified that his, her or its personal information is being collected by the Company, the purpose of the collection and to whom such information is disclosed.
- 2.1.2. Collection of information
 - 2.1.2.1. Personal information is collected only when knowingly and voluntarily submitted.

2.1.2.2. Through our “*contact us*” page, you knowingly and voluntarily submit personal information or when you correspond with us directly either via telephone call or electronic mail.

2.1.3. *Purpose of Collection*

2.1.3.1. Personal information is only used for the purpose for which it was collected and/or submitted or such secondary purposes that are related to the primary purpose.

2.1.3.2. Such purpose includes rendering of legal services and billing, compliance with Legal Practice Rules such as keeping proper records, books of account and auditing requirements.

2.1.4. *Disclosure of Information*

2.1.4.1. We undertake never to sell, rent or disseminate your personal information to any third party other than as provided for in this policy.

2.1.4.2. We shall disclose your personal information where you have consented to the disclosure.

2.1.4.3. In special situations, we shall disclose your information to third parties where the Company has reason to believe that doing so is necessary to identify or act against anyone damaging or interfering with our rights or property, users, or anyone else that could be harmed by such activities. Such disclosure shall include disclosing your information to law enforcement, government officials, fraud detection agencies or other third parties when we believe in good faith that the disclosure of personal information is necessary to prevent physical harm or financial loss, to report or support the investigation into suspected illegal activity.

2.1.4.4. The Company may engage third parties to provide you with services on our behalf and in such circumstances may disclose your personal information to such parties in order to provide such goods and services, however we shall always advise you should this be necessary.

2.1.4.5. We disclose your information to our employees, to our service providers (under contract with us) who help with parts of our business operations, which includes fraud prevention, accounting, specialised services, technology services,

auditing etc). However, our contracts dictate that these service providers may only use your information in connection with the services they perform for us and not for their own benefit.

2.2. Access of personal information

2.2.1. The Company recognizes that a data subject has the right to establish whether the Company holds personal information related to him, her, or it, including the right to request access to that personal information.

2.2.2. Access to information requests can be made by email, addressed to the Information Officer, which details are provided herein. The Information Officer will provide the data subject with a “Personal Information Request Form”.

2.2.3. Once the completed form has been received, the Information Officer will verify the identity of the data subject prior to handing over any personal information. All requests will be processed and considered against the Company’s PAIA Policy.

2.2.4. The Information Officer will process all requests within a reasonable time.

2.3. The Right to have Personal Information Corrected or Deleted

The data subject has the right to request, where necessary, that his, her or its personal information must be corrected or deleted where the Company is no longer authorised to retain the personal information. Such request can be made to the Information Officer.

2.4. The Right to Object to the Processing of Personal Information

The data subject has the right, on reasonable grounds, to object to the processing of his, her or its personal information. In such circumstances, the Company will give due consideration to the request and the requirements of POPIA. The Company may cease to use or disclose the data subject’s personal information and may, subject to any statutory and contractual record keeping requirements, also approve the destruction of the personal information.

3. COOKIES

The Company does not use cookies, pixels, and other technologies (collectively referred to as “cookies”) to recognize your browser or device.

4. THIRD PARTY RIGHTS & LINKING TO THIRD PARTY WEBSITES

- 4.1. We do not allow approved third-party service providers to list and sell their services on our Website.
- 4.2. Should there however be links or references to other websites ("Third Party Websites"), which are outside of our control, including those of advertisers, we are not responsible for the practices and/or privacy policies of those Third-Party Websites or the "cookies" that those sites may use.
- 4.3. Please note your use of such Third-Party Websites is entirely at your own risk and we are not responsible for any loss, expense, claim or damage, whether direct, indirect, or consequential, arising from your use of such Third-Party Websites or your reliance on any information contained therein.
- 4.4. All third-party service providers, including their employees, having access to your personal information are bound by appropriate and legally binding confidentiality obligations in relation to your personal information
- 4.5. If you disclose your personal information to a third party, such as an entity which operates a website or service linked to our Website or anyone other than us, WE SHALL NOT BE LIABLE FOR ANY LOSS OR DAMAGE, HOWSOEVER ARISING, SUFFERED BY YOU AS A RESULT OF THE DISCLOSURE OF SUCH INFORMATION TO THE THIRD PARTY. This is because we do not regulate or control how that third party uses your personal information. You should always ensure that you read the privacy policy of any third party.

5. SECURITY MEASURES

- 5.1. We will take appropriate technical and organisational measures to ensure that your personal information is kept secure and is protected against unauthorised or unlawful processing, accidental loss, destruction or damage, alteration, disclosure, or access.
- 5.2. Any information that you upload on our website will be stored on a secure server, with the necessary protection measures such as firewalls and password control.
- 5.3. We will not retain your personal information longer than the period for which it was originally needed, unless we are required by law to do so, or you consent to us retaining such information for a longer period.

- 5.4. We ensure that all our employees, third-party service providers, divisions, affiliates, and partners (including their employees and third-party service providers) having access to your personal information are bound by appropriate and legally binding confidentiality obligations in relation to your personal information.
- 5.5. Whilst we will do all things reasonably necessary to protect your rights of privacy, the Company cannot guarantee the absolute security of any information you exchange with us due to reason beyond our control. We further do not accept any liability whatsoever for unauthorised or unlawful disclosures of your personal information, whilst in our possession, made by third parties who are not subject to our control, unless such disclosure is as a result of our gross negligence.

INFORMATION OFFICER

The organisation appointed information officer is Marina Horak

- Contact details: 021 976 1054
- Email address: marina@horakinc.co.za
- Address: Oxford House, Wellington Road, Durbanville, 7551

Should you have any further questions relating to our Privacy Policy, please contact the Information Officer with details above.